

Families and Children Manual

Section: Categories of Eligibility

Policy Manual Number: 015.035

Chapter: Pregnancy MAGI

Legal Authority: Sec. 1902(a)(10)(A)(ii)(XX) of the Social Security Act [42 USC 1396a]; 42 CFR 435.218; 42 CFR 435.4; 42 CFR 435.112; 42 CFR 435.115; 42 CFR 435.116; 42 CFR 435.603; 42 CFR 435.952; 42 CFR 435.956; 42 CFR 435.218; Tenn. Comp. R. & Regs. 1200-13-20-.07(2)

1. Policy Statement

TennCare Medicaid benefits are available to pregnant women whose household income is equal to or less than 250% of the Federal Poverty Level (FPL) based on Eligibility Determination Group (EDG) size, and who meet all non-financial eligibility requirements.

2. Coverage Period

Women who are determined eligible for and receive TennCare Medicaid while pregnant remain eligible for benefits through a 12-month postpartum period, beginning the last day of the pregnancy and ending on the last day of the month in which the 12-month period ends. The 12-month postpartum period is automatic and applicable to all pregnant women who have been determined eligible for and received TennCare Medicaid benefits prior to the end of the pregnancy, including women who received benefits in a retroactive period. Pregnant women who apply and whose eligibility begin date is after the end of their pregnancy are not eligible for a 12-month postpartum period but will maintain benefits through a 60-day postpartum period. The postpartum coverage period is applied regardless of any changes in circumstances and regardless of how the pregnancy ends.

The 12-month postpartum period will end prior to the end of the 12 months in the following instances:

- a. Coverage is voluntarily terminated;
- b. The woman is no longer a resident of Tennessee;
- c. The State determines that eligibility was erroneously granted at the most recent eligibility determination or renewal of eligibility because of state error, or fraud, abuse, or perjury attributed to the woman or her representative; or
- d. Death.

3. Non-financial Eligibility Requirements

Women eligible for the Pregnancy MAGI category must meet all non-financial eligibility requirements. Additional information about each condition of eligibility is available in the Non-Financial Eligibility chapters.

- a. **Age:** There is no minimum or maximum age for the Pregnancy MAGI category.
- b. **Pregnancy:** A woman is considered a pregnant woman through the 60-day postpartum period. TennCare accepts self-attestation of pregnancy at application or as a reported change, unless

TennCare has information that is not reasonably compatible with such attestation. If TennCare has information that is not reasonably compatible with an attested pregnancy, TennCare will contact the individual and may request written medical verification of the pregnancy.

- c. **Citizenship:** A pregnant woman must be a U.S. Citizen, U.S. National or eligible non-citizen.
- d. **Enumeration:** A pregnant woman must possess and provide a valid Social Security Number (SSN) or proof of an SSN application, unless she meets an exception.
- e. **State Residence:** A pregnant woman must be a resident of Tennessee.
- f. **Cooperation with Child Support Services:** A pregnant woman is not required to agree to cooperate with Child Support Services for the unborn baby.

4. Financial Eligibility Requirements

a. Eligibility Determination Group

The Pregnancy MAGI category uses the Modified Adjusted Gross Income (MAGI) methodology to determine EDG size. When determining household size for a pregnant woman, the pregnant woman is counted as herself plus the number of children she is expected to deliver. When determining EDG size for other applicants in the household, the pregnant woman is counted as one person. For additional information regarding EDG size see the Eligibility Determination Group for MAGI policy.

b. Income Standard

Effective January 1, 2024, the income standard for this category is 250% FPL. Pregnant women will continue to be covered in the mandatory category up to 195% FPL. At this time, pregnant women between 195% and 250% FPL are covered under additional flexibilities as a part of the TennCare III Waiver.

c. Budget

Ms. Richardson applied for Medicaid for herself. She is pregnant and has one dependent child. Ms. Richardson is employed with a Net Countable Earned Income of \$2,670. Her Before/Pre-tax Contributions total \$150 and 1040 deductions totaling \$700. The example budget is based on an EDG size of 3 and determines eligibility with an Income Test Limit of \$3,319.

Ms. Richardson's Net Countable Earned Income, \$2,670, is under the Income Test Limit, \$3,319. The MAGI 5% Deduction is not applied because the Total Net Countable Income is under the Income Test Limit for the Pregnancy MAGI category.

Income Budget Calculation		
Net Countable Self-Employment Income		\$ 0.00
Net Countable Earned Income		\$ 2,670.00
Before/Pre-tax Contribution Deductions	-	\$ 150.00
Remaining Countable Earned/Self-Employment Amount	=	\$ 2,520.00
Net Countable Unearned Income	+	\$ 0.00
Countable Earned and Unearned Income	=	\$ 2,520.00
1040 Deduction	-	\$ 700.00
MAGI 5% Deduction	-	\$ 0.00
Net Countable Income	=	\$ 1,820.00
Income Test Limit		\$ 3,319.00
Gap Filling Amount	-	\$.00
Total Net Countable Income	=	\$ 1,820.00
Income Test Result		PASS

The above budget is current as of March 2017.

5. Resource Test

There is no resource test for the Pregnancy MAGI category.

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Version History

Revision Date	Section	Section Title	Page Number(s)	Reason for Revision	Reviser
10.30.2014				Publication	
08.01.2016	2.	Coverage Period	1	Policy Clarification	AJ
03.18.2019	1.; 3.b.; 4.a.	Legal Authority; Policy Statement; Pregnancy; Eligibility Determination Group	1-2	Policy Clarification	SN
03.18.2019	4.c.	Budget	2	Non-Substantive Change	SN
04.01.2022	2.	Coverage Period	1	Policy Change	TN
06.03.2024	1; 4.b.	Policy Statement; Income Standard	1-2	Policy Change	KF